
toluna

MUTUAL CONFIDENTIALITY AGREEMENT

This Confidentiality Agreement ("Agreement") is between TOLUNA SAS, a company registered in France with its principal address being at 5 Avenue du Chateau – 94300 Vincennes, France (on behalf of itself, its Affiliates) ("**Toluna**"); and **Opinionz SAS**, a company registered in France, with its principal office at 3 Cité Rougemont 75009 Paris, France (on behalf of itself, its Affiliates) ("**Company**") and is effective as of the date signed by both parties.

WHEREAS, the parties hereto are currently, and may, from time to time continue to be, engaged in discussions and evaluations regarding their relationship (the "**Evaluation**"); and

WHEREAS, the Evaluation may lead to the parties entering into a contract or embarking upon an on-going commercial relationship (the "**Commercial Relationship**"); and

WHEREAS, in connection with an Evaluation or a Commercial Relationship among the parties, each party, including its respective Affiliates and their respective Representatives (each, a "**Recipient**") may receive or come in contact with certain Confidential Information (as defined herein) of the other party, its respective Affiliates (each, a "**Discloser**").

NOW THEREFORE, as a condition to each of the parties' disclosure of such Confidential Information to the other, each party agrees to treat such Confidential Information, whether furnished before, on or after the date of this Agreement, in accordance with the terms of this Agreement.

1.1 "**Affiliates**" as used in this Agreement means in relation to a party to this Agreement, any corporation or other entity that controls, is controlled by, or is under common control with, a party. A corporation or other entity shall be regarded as in control of another corporation or entity if it owns or directly or indirectly controls 50% or more of the voting securities or other ownership interest of the other corporation or entity, or if it possesses, directly or indirectly, the power to direct or cause the direction of the management and policies of the corporation or other entity.

1.2 "**Confidential Information**" as used in this Agreement means information in any form disclosed or made available by a Discloser to a Recipient that the Recipient knows, or reasonably ought to know (either because such information is marked or otherwise identified by the Discloser orally or in writing as confidential or proprietary, has commercial value, or because it is not generally known in the relevant trade or industry) is confidential information of the Discloser and shall include, without limitation:

(a) the current, future and proposed products or services of the Discloser, as well as financial, proprietary, technical, developmental research, operational, sales and marketing information related thereto; ideas, inventions, and works of authorship; business and process information and plans, business performance and forecasts, budgets, prices and costs, financial statements, research, sales and distribution arrangements, and the identity of partners, suppliers and customers; the existence of any business discussions, negotiations or agreements between the parties; any information regarding the skills and compensation of employees, contractors or other agents of the Discloser or its Affiliates; and software, and computer programming techniques, panel maintenance techniques, sample suppliers and online survey and ad targeting techniques and processes; and

(b) in the case of Toluna, Confidential Information shall also include, but shall not be limited to, any and all information, data, statistics, practices related to or connected with a Toluna panel or Toluna's recruitment of members to a Toluna panel, including, but not limited to: panel recruiting programs, methods or practices; panel recruiting response rates or statistics; demographic information regarding recruited panelists; post recruitment panelist activity data, such as survey participation rates; panel recruiting incentive programs and related effectiveness data; panel recruiting costs; and any information, data and statistics related to recruiting partners and sample sources; and

(c) may include PII.

1.3 "**Personally Identifiable Information**" or "**PII**" means information that can be used on its own or with other information to identify, contact, or locate a single person, or to identify an individual in context.

1.4 "**Representatives**" as used in this Agreement means a party to this Agreement, their Affiliates and their respective representatives (including, without limitation, employees, directors, officers, legal advisers and accountants).

2. Recipient hereby agrees:

(a) not to copy, make use of, disseminate, or in any way disclose the Confidential Information of the Discloser, in any form, except to pursue the Evaluation or a Commercial Relationship, and except as specifically contemplated herein;

(b) to use reasonable efforts to maintain the confidential nature of the Confidential Information (but in no event less than the efforts used by Recipient to protect its own confidential information);

(c) that Confidential Information may only be disclosed to its authorized Representatives on a "need-to-know" basis, provided that they are made aware of and agree to be bound by a duty of confidentiality no less protective of the Discloser's Confidential Information than this Agreement and only as necessary to conduct the Evaluation and/or discuss or negotiate a Commercial Relationship;

(d) that it shall segregate all Confidential Information from the confidential materials of others in order to prevent commingling;

(e) not to reverse engineer, decompile or disassemble any Confidential Information disclosed hereunder; and

(f) that upon termination of the Evaluation or the Commercial Relationship, or at any time upon Discloser's request, Recipient shall; (i) return to the Discloser all originals and copies of the Discloser's Confidential Information in hard copy form or format; and (ii) delete and erase all originals and copies of the Discloser's Confidential Information in electronic or other non-hard copy form, format or media. Recipient may keep an archival set of its working papers together with such copies of Confidential Information to comply with its document retention policies, applicable law, rule, regulation or professional standards and neither party shall be obligated to return or destroy Confidential Information contained in its electronic back-up systems. Any copies of Confidential Information so kept shall be retained in accordance with the terms of this Agreement.

3. Each party's Confidential Information shall not include information that: (a) is or subsequently becomes publicly available without Recipient's breach of any obligation owed to Discloser; (b) became known to Recipient prior to Discloser's disclosure of such information to Recipient; (c) became known to Recipient from a source other than Discloser other than by the breach of an obligation of confidentiality owed to Discloser; or (d) was developed by employees or agents of the Recipient without use or reference to Confidential Information of the Discloser. In addition, the Recipient may disclose the Discloser's Confidential Information in response to a valid order by a court or other governmental body, provided that the Recipient shall immediately notify the Discloser of receipt of any such order and provide the Discloser a reasonable period of time in which to oppose such order before responding.

4. **Personally Identifiable Information:** On occasions, the Discloser may provide Recipient with PII. With respect to any PII, Recipient or any of its Representatives may receive under this Agreement, Recipient hereby represents, warrants and covenants to Discloser that:

(a) it will only use the PII obtained, received, or collected in connection with the relevant Evaluation for the purposes of such Evaluation and for no other

purpose; and shall only process such PII in accordance with (i) Discloser's instructions; and (ii) applicable privacy laws.

(b) Recipient will: (i) put appropriate technical and operational processes and procedures in place to safeguard against unauthorized or unlawful processing of the PII; (ii) protect the security, integrity and confidentiality of the PII and will not permit any unauthorized access to, or use, disclosure, publication or dissemination of, the PII. Recipient agrees to use the same degree of care and scrutiny as it uses to protect and secure its own confidential information and customer information, but in no event will Recipient use less than a reasonable degree of care.

(c) Recipient shall not sub-contract any obligation under this Agreement to a third party without the Discloser's prior written consent. If such consent is given, then prior to disclosing any PII to any third party, Recipient shall enter into an agreement with such third party obligating such party to adhere to the terms of this Agreement, in particular; this clause 4 ("**Third Party Agreement**"). The Third-Party Agreement shall only contain terms that are consistent with the terms of this Agreement; in particular, this clause 4. The Recipient will not enter into a Third-Party Agreement unless (i) it has first performed a due diligence review on such third party; and (ii) at all if there are circumstances in which it knows or reasonably should have known that such third party would pose a material risk to the security, integrity or confidentiality of the PII. Recipient shall remain fully liable to Discloser for the acts and omissions of any such subcontractor.

(d) The Recipient will and will cause all its Representatives to comply with the terms of this Clause 4 and take reasonable steps to ensure the reliability of all its Representatives who have access to the PII.

(e) In the event of a breach of the security of Recipient's systems, servers and/or facilities, or any unauthorized access to, or use and/or disclosure of, the PII ("**Security Breach**"), while in Recipient's possession, Recipient will promptly notify Discloser, but in no event later than twenty-four (24) hours, after Recipient first learns of or discovers the Security Breach. In the event of a Security Breach, Recipient will (i) use its best efforts to mitigate any harmful effect(s) of the Security Breach; (ii) use commercially reasonable efforts to make available sufficient resources and data for Discloser to determine the full impact and root cause of the Security Breach; and (iii) fully co-operate with Discloser in investigating the cause(s) of any Security Breach and in providing notice to affected individuals and/or the appropriate legal and/or regulatory agencies, as required by any applicable laws and codes of practice.

5. All Confidential Information and materials furnished hereunder shall remain the property of Discloser and are provided on an "as is" basis, and Discloser shall have no liability arising out of the Recipient's use thereof.

6. Each party acknowledges that unauthorized disclosure or use of the other party's Confidential Information will cause irreparable harm to such other party. Each party agrees that monetary damages would not be a sufficient remedy for any breach by it of this Agreement and that the non-breaching party shall be entitled to specific performance and injunctive or other equitable relief as a remedy for any such breach.

7. The parties hereto shall not be obligated to compensate each other for disclosure of any information under this Agreement in accordance with its terms and agree that no warranties of any kind are given with respect to such information, as well as any use thereof. It is understood that no patent, copyright, trademark or other proprietary right or license is granted by this Agreement.

8. This Agreement shall be effective as of the first date of disclosure of Confidential Information to Recipient and shall continue until either party terminates it by giving at least thirty (30) days' prior written notice to the other. Recipient's obligations hereunder with respect to treatment of Confidential Information shall survive for a period of two (2) years after disclosure (other than with respect to PII and Discloser's proprietary information, including trade secrets, which obligations shall continue in perpetuity).

9. **Miscellaneous**. **Variation** - No variation of this Agreement shall be valid unless it is in writing and signed by, or on behalf of, each of its parties. **Waiver** - No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it preclude or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall preclude or restrict the further exercise of that or any other right or remedy. **Severance** - If any court or competent authority finds that any provision of this Agreement (or part of any provision) is invalid, illegal or unenforceable, that provision or part-provision shall, to the extent required, be deemed to be deleted, and the validity and enforceability of the other provisions of this Agreement shall not be affected. If any invalid, unenforceable or illegal provision of this Agreement would be valid, enforceable and legal if some part of it were deleted, the parties to the Agreement shall negotiate in good faith to amend such provision such that, as amended, it is legal, valid and enforceable, and, to the greatest extent possible, achieves such parties' original commercial intention. **Entire Agreement** - This Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous drafts, agreements, arrangements and understandings between them, whether written or oral, relating to its subject matter. Each party agrees that it shall have no remedies in respect of any representation or warranty (whether made innocently or negligently) that is not set out in this Agreement. No party shall have any claim for innocent or negligent misrepresentation based upon any statement in this Agreement. **Assignment** – Neither party shall, without the prior written consent of the other (not to be unreasonably withheld or delayed) assign or transfer, all or any of its rights or obligations under this Agreement, save that either party may assign, novate or transfer to any of its respective Affiliates, or successor in business, provided that such Affiliate or successor agrees in writing to be bound by all terms and conditions of this Agreement. **Notices** - A notice given to a party under or in connection with this Agreement shall be in writing and sent to the party at the address given in this Agreement or as otherwise notified in writing to the other party. **Governing law and jurisdiction** - This Agreement shall be governed by, and construed in accordance with, the laws of France. The parties to this Agreement irrevocably agree that the courts of Créteil shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims)

TOLUNA

Signature: Celine Francois

Name: Celine Francois

Title: Sr Director, Partnerships

Date: 7/27/2026

COMPANY

Signature: Benjamin Cornu
Benjamin Cornu (Jul 28, 2026 17:26:47 GMT+2)

Name: Benjamin Cornu

Title: President

Date: 07/28/2026

Toluna (incl. Affiliates)_Mutual NDA_2026_Opinionz SAS_final_20260727

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Syno

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SYNO CLOUD AGREEMENT

21 April, 2026

Vilnius

This Syno Cloud Agreement (hereinafter the "Agreement") is entered on the day mentioned herein above (hereinafter the "Conclusion Date") by and between:

UAB Syno International (hereinafter the "**Company**"), a private limited civil liability company, incorporated and operating pursuant to the legal acts of the Republic of Lithuania, under legal entity code 302748928, with the registered office address at Vilniaus str. 35, LT-01119 Vilnius, the Republic of Lithuania, e-mail jokke.nurminen@synoint.com, represented by the Chief Executive Officer (CEO) **Jokke Pertti Nurminen**,

And

Company name	**OPINIONZ SAS**
Registration number	**N° 988 188 355**
Country	**France**
Address	**3 Cité Rougemont 75009 PARIS**
E-mail address	**opinionz.marketplace@gmail.com**
Contact Tel. No.	**Benjamin Cornu : +33 6 71 03 98 84** **Alain Cornu : +33 6 07 99 35 43**
Website	**https://opinionz.ai/fr/ (only in French)**
Bank details (IBAN, SWIFT, bank title)	**IBAN: FR76 3006 6102 9000 0211 6010 228** **BIC / SWIFT: CMCIFRPP** **Banque CIC "Crédit Industriel et Commercial"**
VAT No.	**55 98 8188 355**
Position of authorized representative	**President**
Name and surname of authorized representative	**Benjamin Cornu**

(hereinafter the "**Client**"),

hereinafter the Company and the Client together referred to as the "Parties" and each separately as the "Party".

1. Definitions

1.1. Definitions:

1.1.1. "**Day**" means any business day from Monday to Friday, except Saturday, Sunday and national holiday in Lithuania.

1.1.2. "**Services**" means services provided or / and offered pursuant to this Agreement and its Annexes.

1.1.3. "**Systems**", "**Solutions**" means the Company developed and owned software system - called "**Syno Cloud**". "**Syno Cloud**" is a powerful online data management platform. It provides a platform that combines multiple data collection methods, panel and project management, data processing and reporting. More information about the Syno Cloud platform is available on *https://www.synoint.com.*

1.1.4. "**Work Product**" means the result created by the Company and / or the Client pursuant to this Agreement and its Annexes.

1.2. Interpretations:

1.2.1. a reference to an amendment includes any change, modification, supplement, novation, variation, increase, extension (whether of maturity or otherwise), restatement, re-enactment or replacement (however fundamental and whether or not more onerous) and amended will be construed accordingly. Reference to a contract or an agreement shall be construed as a reference to such contract or agreement as it may be amended

from time to time;

1.2.2. terms: whenever a term is established by this Agreement it shall be calculated as follows: (i) terms established by days or weeks shall not include the day from which they start but shall include the day on which they elapse, (ii) terms established by months elapsed on the corresponding day of the last month of the term, if existing, or on the immediately following day, and (iii) terms established by years elapse on the corresponding date from the last year of the term, if existing or on the immediately following day, as the case may be. For the avoidance of doubt, and unless expressly indicated otherwise, terms shall be calculated per calendar days;

1.2.3. headings are inserted for convenience of reference only and shall not affect the interpretation of this Agreement.

2. Subject - matter of the Agreement

2.1. This Agreement clearly defines the requirements and responsibilities of both Parties to set up mutually agreed expectations in order to deliver a successful business cooperation and to provide agreed and relevant Services.

2.2. By this Agreement the Parties confirm that they intend to use the Services which are selected in any form as indicated in clause 2.3. of this Agreement and indicated in Annexes of this Agreement and that they are informed that Services are taxed. Services are invoiced for in accordance with prices listed in the Agreement or agreed specifically.

2.3. Services, the Client may apply at any time during the term of the Agreement. The order for other Services may be made:

2.3.1. in writing, as an annex / appendix to this Agreement. This annex / appendix to this Agreement must be signed by both Parties;

2.3.2. by e-mail (e-mail sender from the Company side should be with an e-mail address which consists of "@synoint.com", e-mail sender from Client side should be authorized to send such a request and be approved by the representative of the Client). In such cases, the Client must send requests for additional Services and a sender from the Company side must agree to provide other Services to the Client. The Company (if it is required by Client`s selected Services) undertakes to grant to the Client the right and license to use relevant Systems for agreed Services;

2.3.3. ordered by marking respective Services applications in the Syno Cloud Clients account. Client warrants that representative from Clients side having Client Account Managers status is fully authorized to order respective/selected Services on Clients behalf.

2.4. Under this Agreement (if it is required by Client`s selected Services), the Company in 5 (five) days after Conclusion Date provides access data (login and password) and other required information to the Client which is necessary to start using agreed Services.

2.5. The Parties shall undertake to closely cooperate from the moment this Agreement is signed to duly fulfill the requirements of the Agreement.

3. Obligations of the Parties

3.1. The Client shall at all times fulfill the following obligations:

3.1.1. the Client shall be responsible for the maintenance, use and availability of own network connection to the Services;

3.1.2. access and use of the Services require Client to be connected to the internet and provide access to the technical equipment, including software and hardware infrastructure, described in Agreement and its Annexes;

3.1.3. the Client shall ensure at all times that the prerequisites defined in Annexes are fulfilled;

3.1.4. the Client agrees to comply with all reasonable requests by the Company to protect the respective rights of the Company in Systems and use of the Services. The Client shall not force any electronic barriers or locks which has been adapted for the purpose of protecting Systems and the Services and the Client agrees not to access any information not publicly available or intended for public use contained in the Services or on Systems, or on any other third-party system connected to Systems or to the Services;

3.1.5. it is the responsibility of the Client to ensure that all data used and/or transferred through the use of the Services complies with all applicable laws and regulations, including but not limited to data protection, marketing legislation, information of and management of cookies, intellectual property rights, export control,

personal integrity, marketing legislation, consumer protection and all other concerned legal standards. The Clients agrees not to use the Services for any unlawful purpose or purpose which could create damage or loss for the Company or any third party including, but not limited to, distributing unlawful, false or misleading marketing and other information or information which is inflammatory or offensive on integrity, moral, religious, communal or political grounds. The Client further agrees to comply with reasonable guidelines by the Company for the use of the Services;

3.1.6. the Client shall make reasonable efforts to ensure and be liable that no data or other information are being transferred, operated or used fraudulently by or on behalf of the Client through the use of the Services;

3.1.7. the Client shall not at any time provide or use any data or other information with the Services which infringes or may infringe any third-party Intellectual property rights the Client is aware of and that before any such data and/or information is used all rights, licenses and consents including any intellectual property rights the Client is aware of, have been obtained and all requirements of law complied with as may be necessary to enable such data and/or information to be used in accordance with the intended purpose.

3.1.8. agree to make reasonable efforts to ensure that no viruses, worms, Trojan horses, time bombs, cancel bots or any other harmful, damaging or destructive programs or content are transmitted or caused to be transmitted by or on behalf of the Client through the use of the Services;

3.2. The Company may commission subcontractors or other third parties. Any subcontractor will be permitted to obtain data only to deliver the Services the contracting party has retained them to provide, and they are prohibited from using the Data for any other purposes, by no means all direct responsibilities and liability undertaken by this Agreement remains with the Parties.

3.3. The Client acknowledges that the Services are provided “as-is” based on industry standards and shall use them at its own responsibility. The Client shall indemnify and hold harmless the Company against any claims or damages resulting from the Client’s unlawful use of the Services or breach of data-protection, marketing, or consumer-protection laws.

4. Additional obligations of the Parties

4.1. The Parties ensure that they comply with Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) and keep all requirements of this legal act.

4.2. The Parties ensure that they comply with ESOMAR (formerly known as The European Society for Opinion and Market Research) and keep all requirements of the ICC/ESOMAR Contents International Code on Market, Opinion and Social Research and Data Analytics.

4.3. Under this Agreement the Company ensures that:

4.3.1. Services shall be conducted with the same level and degree of skill ordinarily exercised by members of its profession operating in a similar locality, at a similar time and under similar conditions and circumstances;

4.3.2. will be used its best efforts to perform and complete Services;

4.3.3. Services will be performed and finished at agreed time.

4.4. Under this Agreement the Client ensures:

4.4.1. not to use Services for any purpose that is unlawful or prohibited by this Agreement and applicable legal requirements;

4.4.2. that the Client is responsible for maintaining the confidentiality of access and account details in the Systems and is fully responsible for all activities that occur on the Client's account.

5. Fees and payment terms

5.1. In consideration of the rights granted by Company to Client under this Agreement, Client shall pay Company the fees described in this Agreement and its Annexes (for example, fee per month based on provided Services as set forth in Agreement and Annexes).

5.2. All fees shall be invoiced monthly at the end of the month. All fees are payable in thirty (30) calendar days net from the date of the invoice. In case of any delay in payment exceeding ten (10) calendar days, the Company shall have the right to suspend provision of the Services until full payment is received. In addition to the delay penalty of 0.05 % per day, the Company may charge default interest and reasonable recovery costs. Payments shall in no case be refundable, except if Services were not provided due to the Company’s fault.

5.3. The Client shall have the right to review and reconcile respondent statuses within fifteen (15) calendar days following the end of the relevant fieldwork period. Upon expiry of this period, all respondent statuses delivered as completes shall be deemed accepted, final, and binding for all purposes, including invoicing under this Agreement. The Client shall not be entitled to dispute, reclassify, or reject such completes after this period.

5.4. All invoices shall be deemed accepted unless the Client raises substantiated objections in writing within ten (10) calendar days of receipt. For the avoidance of doubt, the Client shall not be entitled to dispute any invoice to the extent such dispute relates to respondent statuses or deliverables already deemed accepted in accordance with this Agreement.

5.5. Invoices shall be quoted in Euro (Eur).

5.6. Unless explicitly stated otherwise, all fees in this Agreement or its Annex are exclusive of all taxes, duties, fees and other governmental charges of any kind (including sales and use taxes, but excluding taxes based on the gross revenues or net income of Company) which are imposed by or under the authority of any law or regulations of any government or any political subdivision thereof on the fees or any aspect of this Agreement. If applicable, such taxes and charges shall be borne and paid by Client and shall not be considered a part of, a deduction from, or an offset against fees.

6. Force Majeure

6.1. Neither party shall be liable for failure to fulfill its obligations under this Agreement if that failure is, directly or indirectly, caused by conditions beyond the reasonable control of Company or Client, including acts of God, fire, flood, earthquake, pandemic, lockdown, strike, or other natural disasters (Force Majeure). Any such non-performance shall not constitute a breach of this Agreement, and the time for performance of such provision, if any, shall be deemed to be extended for a period equal to the duration of the conditions preventing such performance. If such period of non-performance extends for more than 60 (sixty) days, either Party may terminate this Agreement by providing written notice to the other Party.

7. Intellectual Property Rights

7.1. The Parties acknowledges and agrees that the Services provided pursuant to this Agreement and Annexes does not include any grant of rights or license to the other Party's software and systems, merely a right to use the functionality of such software through the Services as described in Annexes and as the case may be, in applicable Release Notes. All Intellectual Property Rights to software and Systems used through the Services, in all languages, formats, and media throughout the world is vested in and the exclusive property of the providing Party.

7.2. All Intellectual Property Right and title to any Work Product shall be vested with the providing Party and the procuring Party shall receive a license right to use Work Products solely for the utilization of the Services. This shall apply irrespectively of whether the procuring party has provided the Party with specific design material or other assistance in the development of such Work Product, and cover also Intellectual Property Rights based on work done on the number of people calculation process prior to the date of this Agreement.

7.3. The Parties agree that any and all proprietary (property) of rights relating to Systems initially owned by the Company or Client shall remain the sole property of and proprietary to the Company or Client. Nothing in the Agreement shall alter these rights and no title to or ownership of the Systems are transferred.

7.4. The Parties agree not to make any attempt to obtain the source code or in any other way whatsoever create or permit others to attempt to create, by reverse compiling or disassembling or otherwise, any part of the Systems.

7.5. The Client is granted a non-exclusive, non-transferable, limited license to use the Services solely for its internal business purposes during the term of this Agreement. All analytics, aggregated data, benchmarking results, and other derivative or anonymized information generated by the Company in the course of providing the Services shall remain the exclusive property of the Company.The Client shall not copy, decompile, disassemble, or create derivative works of any part of the Systems, nor allow any third party to do so.

8. Term and termination

8.1. This Agreement shall come into force upon the Conclusion Date.

8.2. This Agreement shall continue in force for a period of 1 (one) year from the Conclusion Date. If not terminated by either Party with 3 (three) months' prior written notice, the Agreement shall automatically renew

for a further 12 (twelve) months period. Such an extension is not limited to and may take place for the third, fourth year and so on.

8.3. The Company may by written notice terminate this agreement and/or a Services in any one or more of the following respects:

8.3.1. if the Client commits a material breach of any of the obligations undertaken in clause 3.1. of this Agreement as determined by the Company, acting in its absolute discretion and (if such breach is remediable) fails to remedy that breach within a period of 7 days after being notified in writing to do so;

8.3.2. if the Client becomes bankrupt or makes any composition or arrangement with its creditors or has a winding up order made, or resolution for voluntary winding up passed or a receiver or manager or administrator of its business or undertaking is duly appointed or possession is taken by or on behalf of any creditor of any property the subject of a charge;

8.3.3. if the Client delays to pay invoices more than 60 (sixty) days.

8.4. Either Party may terminate this Agreement for convenience by providing sixty (60) days' prior written notice. Termination under this clause shall not relieve the Client of its obligation to pay all fees accrued up to the effective termination date.

8.5. The following provisions shall survive termination or expiry of this Agreement: Intellectual Property Rights, Confidentiality, Data Protection, Limitation of Liability, Governing Law, and any payment obligations incurred before termination.

9. Limitation of liability

9.1. Except as expressly provided otherwise in this Agreement (including Annex 1 "Data Processing Agreement"), and to the maximum extent permitted by applicable law, neither Party shall be liable to the other for any:

9.1.1. loss of profits, revenue, business, contracts or anticipated savings;

9.1.2. loss or depletion of goodwill;

9.1.3. loss of use, loss, corruption or inaccuracy of data or information;

9.1.4. increased operating costs; or

9.1.5. any special, indirect, incidental, consequential, punitive or exemplary damages,

arising out of or in connection with this Agreement, regardless of the legal basis of the claim (contract, tort, negligence or otherwise).

9.2. The exclusions and limitations set out in this Clause shall not apply in the event of a Party's gross negligence or intentional misconduct. For the purposes of this Agreement, *gross negligence or intentional misconduct* means an act or omission which: (i) is intended to cause harm; or (ii) demonstrates reckless disregard or wanton indifference to the standards of care reasonably expected from a professional operating in the relevant field, and does not include errors of judgment or mistakes made in good faith in the exercise of contractual rights or discretion.

9.3. Except for liability arising from: (i) gross negligence or intentional misconduct; (ii) liability that cannot be limited under applicable law; or (iii) statutory liability towards data subjects under Regulation (EU) 2016/679 (GDPR), the Company's total aggregate liability to the Client, for all claims arising out of or in connection with this Agreement within any rolling twelve (12)-month period, shall not exceed an amount equal to the fees paid or payable by the Client to the Company during the six (6) months immediately preceding the event giving rise to the claim.

9.4. Nothing in this Agreement or in Annex 1 "Data Processing Agreement" shall be construed as: (i) limiting or excluding the rights of data subjects under Article 82 GDPR; or (ii) limiting the powers of supervisory authorities, including the imposition of administrative fines under Articles 83–84 GDPR. This Clause governs only the contractual allocation of liability between the Parties.

9.5. The Company shall not be liable for any loss, damage or claim arising from:

(a) the Client's misuse of the Services or failure to comply with applicable law;

(b) the Client's instructions that are unlawful or non-compliant with GDPR;

(c) the Client's independent data processing activities; or

(d) third-party claims arising from the Client's content, data, or business operations.

9.6. Each Party ("Indemnifying Party") shall indemnify and hold harmless the other Party, and its directors, officers and employees, only against third-party claims arising directly from the Indemnifying Party's: (i) breach of this Agreement; (ii) gross negligence or intentional misconduct; or (iii) violation of applicable law. This indemnity shall not apply to indirect or consequential damages and shall be subject to the liability cap set out above, unless otherwise required by mandatory law.

10. Confidentiality

10.1. "Confidential Information" means all proprietary or confidential material or information, whether in oral, written or other tangible form that the party disclosing the information (the "Disclosing Party") designates as being confidential or which, under the circumstances surrounding disclosure, the receiving party (the "Recipient") knows or should reasonably understand as confidential given the nature of the information and the circumstances of the disclosure, including without limitation, the terms and conditions of this Agreement. Notwithstanding the foregoing, Confidential Information does not include information that:

10.1.1. was publicly known and made generally available in the public domain prior to the time of disclosure by the Disclosing Party;

10.1.2. is or becomes publicly known and generally available to the public other than:

10.1.2.1. as a result of a disclosure by Recipient or its employees or any other person who directly or indirectly receives such information from Recipient or its employees or;

10.1.2.2. in violation of a confidentiality obligation to Disclosing Party known to Recipient;

10.1.3. is already in the possession of the Recipient at the time of disclosure by the Disclosing Party as shown by the Recipient's files and records immediately prior to the time of disclosure;

10.1.4. is or becomes available to Recipient on a non-confidential basis from a source which is entitled to disclose it to Recipient;

10.1.5. was developed by employees or agents of the Recipient independently of and without reference to any information communicated to Recipient by the Disclosing Party; or

10.1.6. is approved for release (and only to the extent so approved) by the Disclosing Party;

10.1.7. is required by law or by court decision to be disclosed by the Recipient Party, provided that the Recipient gives the Disclosing Party prompt written notice of such requirement prior to such disclosure and assistance in obtaining an order protecting the information from public disclosure.

10.2. A disclosure of Confidential Information, shall not be considered to be a breach of this Agreement or a waiver of confidentiality for other purposes provided it is made (1) in response to a valid order by a court or other governmental body, (2) otherwise required by law, or (3) necessary to establish the rights of either party under this Agreement; provided however, that the party disclosing such information shall provide prompt written notice thereof to the other party to enable it to seek a protective order or otherwise prevent such disclosure.

10.3. Each Party shall protect the other party's Confidential Information in a manner similar to its own Confidential Information of like nature (but in no event using less than reasonable care. Recipient shall hold the Confidential Information in confidence, disclosing the Confidential Information only to such of Recipient's employees, contractors and advisors who have a need to know for the purpose of fulfilling Recipient's obligations under this Agreement. Recipients shall advise any such individuals that the Confidential Information is confidential and that by receiving such information such individuals are agreeing to be bound by the terms of this Section, and to not use such information for any purpose other than authorized herein. Without the Disclosing Party's prior written consent, Recipient shall not, and shall direct such individuals not to, disclose the Confidential Information in whole or in part, except to the extent compelled by law. Recipient shall employ all reasonable steps to protect the Confidential Information from unauthorized or inadvertent disclosure or use, including, without limitation, all steps that it takes to protect its own information that it considers a trade secret.

10.4. Neither Party shall reverse-engineer, disassemble or decompile any prototypes, software or other tangible objects which embody the other party's Confidential Information and which are provided to the Party hereunder.

10.5. The Recipient agrees that upon termination or expiry of this Agreement within 14 (fourteen) days, immediately destroy or erase (in the case of electronically stored information) or return to the Disclosing Party all Confidential Information, whether in printed matter form, on disk or otherwise, which is in the Recipient's Party's

possession, custody or control, save for that Confidential Information which the Recipient Party is bound by law or regulatory requirement to keep or which the recipient Party may reasonably require to keep for archive purposes.

10.6. Notwithstanding the above, the Company may retain copies of Confidential Information to the extent necessary to comply with applicable law, audit obligations, or defense of legal claims, provided that such retained information remains subject to confidentiality protections. Confidential Information may include personal data, which shall be processed in accordance with Annex 1 (Data Processing Agreement).

10.7. The obligations of each Party hereunder shall survive for 5 (five) years after the termination of the Agreement by any means.

11. Non-Compete. Non-Solicitation

11.1. Non-Compete. The Client shall not, during the term of this Agreement and for a period of twelve (12) months thereafter, directly or indirectly: (i) develop, market, license, sell or otherwise make available any software, platform, tool or service that performs the same or materially similar functions as Syno Cloud, including (but not limited to) data collection, panel management, survey distribution, data processing, analytics, or reporting services; (ii) use access to the Services, Syno Cloud, Syno documentation, Syno APIs, Syno know-how, or any Confidential Information to build, train, support, enable or assist a competing product or service (whether for itself or for a third party); (iii) copy, replicate, emulate, reverse engineer, or otherwise derive concepts, workflows, data structures, UI/UX, database architecture, or any functionality of Syno Cloud for the purpose of creating or improving a competing offering; (iv) engage or collaborate with any third party for the purpose of creating a competing solution based on knowledge, insights, deliverables, or access obtained through Syno Cloud; (v) use any Syno intellectual property, deliverables, or confidential information to compete with Syno or to provide services that would replace, bypass, or reduce the need for Syno Cloud. For clarity, ordinary business activities of the Client that do not involve creating, offering, or supporting a Syno-Cloud-type product or service, and do not utilize Syno's Confidential Information, shall not be restricted by this clause.

11.2. Non-Solicitation. For as long as this Agreement remains in effect, and for one year thereafter, Client shall not directly or indirectly, solicit, hire or attempt to solicit any employees of the Company; provided that, a general solicitation to the public for employment is not prohibited under this section.

12. Final provisions

12.1. 60 (sixty) days after the termination of this Agreement due to whatever reason, the Parties shall, unless legally prohibited, delete or anonymize all Confidential Information received from the other Party.

12.2. The Parties shall maintain accurate records in sufficient detail to audit the performance of the Services during the term of this Agreement. The Parties agrees to make available, at the Parties expense, the records for inspection during this period by a certified auditor engaged by the party (subject to such certified auditor executing a reasonable confidentiality agreement with the party) for the purpose of verifying the performance of the Service and the fulfillment of the conditions provided under this Agreement and Annexes below. The Parties will agree, in good faith, on the exact objective of the audit. In the event of a discrepancy between the audit results and the Parties reporting, the Party will in good faith attempt to reduce or eliminate said discrepancy and shall provide a written report of the measures taken and results thereof, no later than 90 (ninety) days after the results of the audit are brought to the attention of the Party. The Parties will work in good faith to agree on the contents of any public statement concerning any such audit. Inspections may be made no more than once in each calendar year at reasonable times mutually agreed by the Parties upon thirty (30) days' notice. If an inspection reveals discrepancies, additional inspections may be held during that current year and the following calendar years.

12.3. This Agreement shall be governed by and construed in accordance with the laws of Lithuania.

12.4. Any dispute, controversy, disagreement or claim arising out of or in connection to the Agreement as well as issues of the breach, termination or validity / invalidity hereof (the Dispute) shall be settled by mutual negotiations. If the Dispute fails to mutually settle within 30 (thirty) days starting from the receipt of one Party's request by the other Party, either Party may submit the dispute to the Vilnius Court of Commercial Arbitration, in accordance with its Rules. The arbitration shall be seated in Vilnius, Lithuania, and conducted in English. This clause does not prevent the Company from seeking interim relief or debt recovery through the competent courts of Lithuania.

12.5. This Agreement with all annexes / appendices to this Agreement, documents, provisions, services, e-mails, offers, prices, fees, timelines, negotiations, etc. under this Agreement shall be treated as confidential information and can be announced for third-parties just with written consent by both Parties.

12.6. Each of the Parties hereby guarantees and warrants the other Party that neither the conclusion of the Agreement nor execution of contractual liabilities under the Agreement contradict or break: (1) any decision, order, enactment, regulation of the court, governmental or municipal institutions applicable for the Parties; (2) any of the Agreement or any other contract, which party is the Party; or (3) any valid law or other legal act applicable to the Parties.

12.7. If any provision of the Agreement contradicts the laws of Lithuania or due to any reason becomes partially or fully invalid, this shall not make other provisions of the Agreement invalid, in such case the Parties agree to change the invalid provision with the legally effective norm, which, as far as possible, would have the same legal and economic result as the changed norm.

12.8. Where there is a conflict, inconsistency or discrepancy between the terms and/or conditions of any Annex issued in respect of the same set of Services and the terms and conditions of this Agreement, the terms and conditions of this Agreement shall prevail over those of the respective Annex.

12.9. All notices contemplated herein will be in writing and delivered as follows, with notice deemed given as indicated to the addresses and contacts indicated above of this Agreement in the requisites of the Parties: (i) by certified or registered mail, upon 5 (five) days after deposit in the mail; (ii) by express courier, upon written verification of receipt; or (iii) by email upon confirmation of receipt or facsimile transmission, upon confirmation of transmission by the transmitting facsimile machine. Addresses used will be those below, or as the same may be changed from time to time by notice similarly given.

12.10. This Agreement is also made up of:

12.10.1. Annex 1 “Data processing agreement”;

12.10.2. Annex 2 “Panel services”;

12.11. Affirming the conditions indicated in this Agreement and indicated Annexes Parties may sign the Agreement or use electronic signature or confirm the Agreement using the Syno Cloud platform.

For and behalf of the Company	**For and behalf of the Client**
Chief Executive Officer (CEO)	**President**
(Position)	(Position)
Jokke Pertti Nurminen	**Benjamin Cornu**
(Name and Surname)	(Name and Surname)
Jokke Nurminen	Benjamin Cornu
(Signature)	(Signature)

ANNEX No. 1 DATA PROCESSING AGREEMENT
(Standard contractual clauses)
Vilnius

Background

1. These Terms determine that Syno provides or / and may provide services to use Syno systems and platforms, such as Syno Cloud, etc. (hereinafter the "**Syno systems and platforms"**) to Client under separate Syno Cloud Agreement between the Parties (hereinafter the "**Agreement")**, and Syno acts as the Data Processor on behalf of its Client acting as the Data Controller. This Annex 1 "Data Processing Agreement" is an integral part of the Agreement.
2. All provisions from the Agreement are valid for this Annex 1 "Data Processing Agreement" ("DPA") and has been approved by the Parties by executing the Agreement.
3. All other users (respondents, panellists, websites users, other users who do not have agreements and contracts with Syno and / or the Client) are described as "Data Subjects" - individuals, whose personal and special categories (sensitive) data can be processed.
4. Parties have agreed to use the **Standard contractual clauses** following COMMISSION IMPLEMENTING DECISION (EU) 2021/915 of 4 June 2021 on standard contractual clauses between controllers and processors under Article 28(7) of Regulation (EU) 2016/679 of the European Parliament and of the Council and Article 29(7) of Regulation (EU) 2018/1725 of the European Parliament and of the Council:

STANDARD CONTRACTUAL CLAUSES

SECTION I

Clause 1
Purpose and scope

(a) The purpose of these Standard Contractual Clauses (the Clauses) is to ensure compliance with Article 28(3) and (4) of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).
(b) The controllers and processors listed in Annex I have agreed to these Clauses in order to ensure compliance with Article 28(3) and (4) of Regulation (EU) 2016/679.
(c) These Clauses apply to the processing of personal data as specified in Annex II.
(d) Annexes I to IV are an integral part of the Clauses.
(e) These Clauses are without prejudice to obligations to which the controller is subject by virtue of Regulation (EU) 2016/679.
(f) These Clauses do not by themselves ensure compliance with obligations related to international transfers in accordance with Chapter V of Regulation (EU) 2016/679.

Clause 2
Invariability of the Clauses

(a) The Parties undertake not to modify the Clauses, except for adding information to the Annexes or updating information in them.
(b) This does not prevent the Parties from including the standard contractual clauses laid down in these Clauses in a broader contract, or from adding other clauses or additional safeguards provided that they do not directly or indirectly contradict the Clauses or detract from the fundamental rights or freedoms of data subjects.

Clause 3
Interpretation

Where these Clauses use the terms defined in Regulation (EU) 2016/679, those terms shall have the same meaning as in that Regulation.
These Clauses shall be read and interpreted in the light of the provisions of Regulation (EU) 2016/679.

These Clauses shall not be interpreted in a way that runs counter to the rights and obligations provided for in Regulation (EU) 2016/679 or in a way that prejudices the fundamental rights or freedoms of the data subjects.

Clause 4
Hierarchy

In the event of a contradiction between these Clauses and the provisions of related agreements between the Parties existing at the time when these Clauses are agreed or entered into thereafter, these Clauses shall prevail.

Clause 5
Docking clause

(a) Any entity that is not a Party to these Clauses may, with the agreement of all the Parties, accede to these Clauses at any time as a controller or a processor by completing the Annexes and signing Annex I.
(b) Once the Annexes in (a) are completed and signed, the acceding entity shall be treated as a Party to these Clauses and have the rights and obligations of a controller or a processor, in accordance with its designation in Annex I.
(c) The acceding entity shall have no rights or obligations resulting from these Clauses from the period prior to becoming a Party.

SECTION II
OBLIGATIONS OF THE PARTIES

Clause 6
Description of processing(s)

The details of the processing operations, in particular the categories of personal data and the purposes of processing for which the personal data is processed on behalf of the controller, are specified in Annex II.

Clause7
Obligations of the Parties

7.1. **Instructions**

(a) The processor shall process personal data only on documented instructions from the controller, unless required to do so by Union or Member State law to which the processor is subject. In this case, the processor shall inform the controller of that legal requirement before processing, unless the law prohibits this on important grounds of public interest. Subsequent instructions may also be given by the controller throughout the duration of the processing of personal data. These instructions shall always be documented.
(b) The processor shall immediately inform the controller if, in the processor's opinion, instructions given by the controller infringe Regulation (EU) 2016/679 or the applicable Union or Member State data protection provisions.

7.2. **Purpose limitation**

The processor shall process the personal data only for the specific purpose(s) of the processing, as set out in Annex II, unless it receives further instructions from the controller.

7.3. **Duration of the processing of personal data**

Processing by the processor shall only take place for the duration specified in Annex II.

7.4. **Security of processing**

(a) The processor shall at least implement the technical and organisational measures specified in Annex III to ensure the security of the personal data. This includes protecting the data against a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure or access to the data (personal data breach). In assessing the appropriate level of security, the Parties shall take due account of the

state of the art, the costs of implementation, the nature, scope, context and purposes of processing and the risks involved for the data subjects.

(b) The processor shall grant access to the personal data undergoing processing to members of its personnel only to the extent strictly necessary for implementing, managing and monitoring of the contract. The processor shall ensure that persons authorised to process the personal data received have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

7.5. **Sensitive data**

If the processing involves personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data or biometric data for the purpose of uniquely identifying a natural person, data concerning health or a person's sex life or sexual orientation, or data relating to criminal convictions and offences ("sensitive data"), the processor shall apply specific restrictions and/or additional safeguards.

7.6. **Documentation and compliance**

(a) The Parties shall be able to demonstrate compliance with these Clauses.

(b) The processor shall deal promptly and adequately with inquiries from the controller about the processing of data in accordance with these Clauses.

(c) The processor shall make available to the controller all information necessary to demonstrate compliance with the obligations that are set out in these Clauses and stem directly from Regulation (EU) 2016/679 and/or Regulation (EU) 2018/1725. At the controller's request, the processor shall also permit and contribute to audits of the processing activities covered by these Clauses, at reasonable intervals or if there are indications of non-compliance. In deciding on a review or an audit, the controller may take into account relevant certifications held by the processor.

(d) The controller may choose to conduct the audit by itself or mandate an independent auditor. Audits may also include inspections at the premises or physical facilities of the processor and shall, where appropriate, be carried out with reasonable notice.

(e) The Parties shall make the information referred to in this Clause, including the results of any audits, available to the competent supervisory authority/ies on request.

7.7. **Use of sub-processors**

(a) GENERAL WRITTEN AUTHORISATION: The processor has the controller's general authorisation for the engagement of sub-processors from an agreed list in herein attached processors Privacy policy https://www.synoint.com/privacy-policy/. The processor shall specifically inform in writing the controller of any intended changes of that list through the addition or replacement of sub-processors at least 14 (fourteen) days in advance, thereby giving the controller sufficient time to be able to object to such changes prior to the engagement of the concerned sub-processor(s). The processor shall provide the controller with the information necessary to enable the controller to exercise the right to object.

(b) Where the processor engages a sub-processor for carrying out specific processing activities (on behalf of the controller), it shall do so by way of a contract which imposes on the sub-processor, in substance, the same data protection obligations as the ones imposed on the data processor in accordance with these Clauses. The processor shall ensure that the sub-processor complies with the obligations to which the processor is subject pursuant to these Clauses and to Regulation (EU) 2016/679.

(c) At the controller's request, the processor shall provide a copy of such a sub-processor agreement and any subsequent amendments to the controller. To the extent necessary to protect business secret or other confidential information, including personal data, the processor may redact the text of the agreement prior to sharing the copy.

(d) The processor shall remain fully responsible to the controller for the performance of the sub-processor's obligations in accordance with its contract with the processor. The processor shall notify the controller of any failure by the sub-processor to fulfil its contractual obligations.

(e) The processor shall agree a third party beneficiary clause with the sub-processor whereby - in the event the processor has factually disappeared, ceased to exist in law or has become insolvent - the controller shall have the right to terminate the sub-processor contract and to instruct the sub-processor to erase or return the personal data.

7.8. **International transfers**

(a) Any transfer of data to a third country or an international organisation by the processor shall be done only on the basis of documented instructions from the controller or in order to fulfil a specific requirement under Union or Member State law to which the processor is subject and shall take place in compliance with Chapter V of Regulation (EU) 2016/679.
(b) The controller agrees that where the processor engages a sub-processor in accordance with Clause 7.7. for carrying out specific processing activities (on behalf of the controller) and those processing activities involve a transfer of personal data within the meaning of Chapter V of Regulation (EU) 2016/679, the processor and the sub-processor can ensure compliance with Chapter V of Regulation (EU) 2016/679 by using standard contractual clauses adopted by the Commission in accordance with of Article 46(2) of Regulation (EU) 2016/679, provided the conditions for the use of those standard contractual clauses are met.

Clause 8
Assistance to the controller

(a) The processor shall promptly notify the controller of any request it has received from the data subject. It shall not respond to the request itself, unless authorised to do so by the controller.
(b) The processor shall assist the controller in fulfilling its obligations to respond to data subjects' requests to exercise their rights, taking into account the nature of the processing. In fulfilling its obligations in accordance with (a) and (b), the processor shall comply with the controller's instructions
(c) In addition to the processor's obligation to assist the controller pursuant to Clause 8(b), the processor shall furthermore assist the controller in ensuring compliance with the following obligations, taking into account the nature of the data processing and the information available to the processor:
    (1) the obligation to carry out an assessment of the impact of the envisaged processing operations on the protection of personal data (a 'data protection impact assessment') where a type of processing is likely to result in a high risk to the rights and freedoms of natural persons;
    (2) the obligation to consult the competent supervisory authority/ies prior to processing where a data protection impact assessment indicates that the processing would result in a high risk in the absence of measures taken by the controller to mitigate the risk;
    (3) the obligation to ensure that personal data is accurate and up to date, by informing the controller without delay if the processor becomes aware that the personal data it is processing is inaccurate or has become outdated;
    (4) the obligations in Article 32 of Regulation (EU) 2016/679.
(d) The Parties shall set out in Annex III the appropriate technical and organisational measures by which the processor is required to assist the controller in the application of this Clause as well as the scope and the extent of the assistance required.

Clause 9
Notification of personal data breach

In the event of a personal data breach, the processor shall cooperate with and assist the controller for the controller to comply with its obligations under Articles 33 and 34 of Regulation (EU) 2016/679, where applicable, taking into account the nature of processing and the information available to the processor.

9.1 **Data breach concerning data processed by the controller**

In the event of a personal data breach concerning data processed by the controller, the processor shall assist the controller:

(a) in notifying the personal data breach to the competent supervisory authority/ies, without undue delay after the controller has become aware of it, where relevant (unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons);
(b) in obtaining the following information which, pursuant to Article 33(3) of Regulation (EU) 2016/679, shall be stated in the controller's notification, and must at least include:

    (1) the nature of the personal data including where possible, the categories and approximate number of data subjects concerned and the categories and approximate number of personal data records concerned;
    (2) the likely consequences of the personal data breach;
    (3) the measures taken or proposed to be taken by the controller to address the personal data breach, including, where appropriate, measures to mitigate its possible adverse effects.

Where, and insofar as, it is not possible to provide all this information at the same time, the initial notification shall contain the information then available and further information shall, as it becomes available, subsequently be provided without undue delay.

(c) in complying, pursuant to Article 34 of Regulation (EU) 2016/679, with the obligation to communicate without undue delay the personal data breach to the data subject, when the personal data breach is likely to result in a high risk to the rights and freedoms of natural persons.

9.2 **Data breach concerning data processed by the processor**

In the event of a personal data breach concerning data processed by the processor, the processor shall notify the controller without undue delay after the processor having become aware of the breach. Such notification shall contain, at least:

(a) a description of the nature of the breach (including, where possible, the categories and approximate number of data subjects and data records concerned);
(b) the details of a contact point where more information concerning the personal data breach can be obtained;
(c) its likely consequences and the measures taken or proposed to be taken to address the breach, including to mitigate its possible adverse effects.

Where, and insofar as, it is not possible to provide all this information at the same time, the initial notification shall contain the information then available and further information shall, as it becomes available, subsequently be provided without undue delay.

The Parties shall set out in Annex III all other elements to be provided by the processor when assisting the controller in the compliance with the controller's obligations under Articles 33 and 34 of Regulation (EU) 2016/679.

SECTION III
FINAL PROVISIONS

Clause 10
Non-compliance with the Clauses and termination

(a) Without prejudice to any provisions of Regulation (EU) 2016/679 in the event that the processor is in breach of its obligations under these Clauses, the controller may instruct the processor to suspend the processing of personal data until the latter complies with these Clauses or the contract is terminated. The processor shall promptly inform the controller in case it is unable to comply with these Clauses, for whatever reason.
(b) The controller shall be entitled to terminate the contract insofar as it concerns processing of personal data in accordance with these Clauses if:
  (1) the processing of personal data by the processor has been suspended by the controller pursuant to point (a) and if compliance with these Clauses is not restored within a reasonable time and in any event within one month following suspension;
  (2) the processor is in substantial or persistent breach of these Clauses or its obligations under Regulation (EU) 2016/679;
  (3) the processor fails to comply with a binding decision of a competent court or the competent supervisory authority/ies regarding its obligations pursuant to these Clauses or to Regulation (EU) 2016/679.
(c) The processor shall be entitled to terminate the contract insofar as it concerns processing of personal data under these Clauses where, after having informed the controller that its instructions infringe applicable legal requirements in accordance with Clause 7.1 (b), the controller insists on compliance with the instructions.
(d) Following termination of the contract, the processor shall, at the choice of the controller, delete all personal data processed on behalf of the controller and certify to the controller that it has done so, or, return all the personal data to the controller and delete existing copies unless Union or Member State law requires storage of the personal data. Until the data is deleted or returned, the processor shall continue to ensure compliance with these Clauses.

ANNEX I

List of parties

Controller(s): [Identity and contact details of the controller(s), and, where applicable, of the controller's data protection officer]

1. Name: OPINIONZ SAS
Address: 3 Cité Rougemont 75009 PARIS, France
Contact person's name, position and contact details: President, Benjamin Cornu opinionz.marketplace@gmail.com

Benjamin Cornu

Confirmation and accession date: 21 April, 2026

2.

.....

Processor(s): [Identity and contact details of the processor(s) and, where applicable, of the processor's data protection officer]

1. Name: UAB "Syno International"

Address: Vilniaus str. 35, LT-01119 Vilnius, the Republic of Lithuania

Contact person's name, position and contact details: Director Jokke Pertti Nurminen and DPO Jurgita Sakalauskiene (data.protection@synoint.com)

Jokke Nurminen

Confirmation and accession date: 21 April, 2026
2.

.....

ANNEX II

Description of the processing

Categories of data subjects whose personal data is processed:

The personal data transferred pursuant to these Clauses is determined by the Controller in its sole discretion, and may include the following categories of data subjects:

- Controller's workforce, including employees, contractors, volunteers, temporary and casual workers, and other personnel or workforce members identified by data Controller from time to time;
- Controller's customers or clients, respondents, panelists, prospective customers or clients, business partners or collaborators, vendors, other data subjects, suppliers or service providers, along with contact persons of any of the foregoing.
- Categories of data subjects otherwise agreed upon between the Parties in the relevant service agreement, including its exhibits, appendices, attachments and amendments.

Categories of personal data processed:

The personal data transferred pursuant to these Clauses is determined by the Controller in its sole discretion, and may include the following categories of data:

- First and last name, user name, password, e-mail, gender, age, postal code, country, phone number;
- Other contact information (e.g., company, business email, phone, business address, business unit, office or division,
  geographic business location, job title or role, reporting lines, postal code etc.);
- Other technical information related to data subjects or their systems, including IP addresses, location data, user names and other account information or credentials.

Sensitive data processed (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

The Parties do not anticipate routine processing of special categories of personal data within the meaning of Article 9 GDPR.
To the extent that special categories of personal data are processed pursuant to documented instructions of the Controller, the Controller warrants that it has established a valid legal basis under Article 9 GDPR and implemented appropriate safeguards. The Processor shall apply appropriate technical and organisational security measures proportionate to the sensitivity of such data.

Nature of the processing

The Processor will process personal data to perform the services described in or instructed by the Controller pursuant to the agreement to which these Clauses are incorporated, including storing, analyzing and otherwise processing such personal data for the duration and scope set forth in such agreement.

Purpose(s) for which the personal data is processed on behalf of the controller

Personal data is transferred for the purpose of the provision of services as described in or instructed by the Controller pursuant to the relevant services agreement entered into by the Parties.
Duration of the processing

Personal data will only be retained as long as necessary for the provision of services and will be deleted at express request of Controller, unless retention is required under applicable laws or if otherwise agreed between the Parties.
For processing by (sub-) processors, also specify subject matter, nature and duration of the processing

Processor uses sub processors in certain limited cases in order to support its provision for the relevant services to Controller, including services involving information technology support, for so long as necessary for the provision of services by the Processor to the Controller.

ANNEX III

Technical and organisational measures including technical and organisational measures to ensure the security of the data

The Processor will maintain administrative, physical and technical safeguards for the protection of the security, confidentiality and integrity of the Controller's data including but not limited to those set forth in the underlying agreement between the Processor and the Controller to which these Clauses are attached. In the event that the underlying agreement does not specify technical and organisational security measures, the parties agree that, at a minimum, the Security Policy available at https://www.synoint.com/security-policy/ shall apply.

ANNEX IV

List of sub-processors

Based on a general authorization Clause 7.7(a), the Processor may engage with the sub-processor(s) as listed in the underlying agreement between the Processor and the Controller.
Agreed list specified in Processors Privacy policy https://www.synoint.com/privacy-policy/.

ANNEX 2
PANEL SERVICES

1. This Annex 2 “Panel services” is an integra l part of the Agreement. All provisions from the Agreement are valid for this Annex 2 “Panel services” and have been approved by the Parties by executing the Agreement.
2. The Company agrees to provide, and the Client agrees to use and remunerate for the provided Services under below specified pricing list which are called “Panel services”.
3. Panel system means: the Company developed a software system called “Panel” (hereinafter the “Panel system”). This system allows the creation of a “Panel” where people (individual persons “Panellists”) can sign up, participate in surveys, market research, etc. Furthermore, the Company in Panel system provides a full platform to set up, recruit, manage, support, incentivize and monetize communities of Panellists to automatically generate additional data and efficiently conduct research. The Company can administer the Panel on behalf of the Client. More about the Panel system is on https://www.synoint.com/syno-panel/.
4. The main requirements and conditions for the Syno Panel Services: the Client has access to the Syno Panel platform.
5. Definitions:

- “**Panel**” refers to a collection of individuals who have agreed to be invited to and participate in research studies or Surveys;
- “**Panel Member**”, “**Panellist**” refers to a member of a Panel, individual who is a part of a Panel and has agreed to be invited to and participate in surveys, market research, opinion polls, etc.;
- “**Survey**” means market research survey when Panellists participate, fill in answers and get rewards.

6. The pricing list of Panel Services:

Kind of Services	Title of Services	Description	Prices and fees, EUR (VAT not included)
General Services	Basic panel setup	The Company assists the Client with basic initial set up of Panel, sets default design with client’s logos, colour, wordings, standard communication templates and general initial tasks to make the Panel ready for recruiting Panellists.	0 EUR
	Extended panel setup	The Company can assist the Client with extended initial set up of Panel. This covers custom design, creatives, wordings, translations, tracking tags and general initial tasks to make the Panel ready for recruiting Panellists.	TBA
	Panel App	The Company provides an application th at the Client can offer to panel members to access their panelist account via mobile application	Included
	Panel integration/API	The Company can assist the Client with integrating the Panel with the Client’s own IT systems such as Panel management, CRM, POS, DMP etc.	TBA
	Conducting surveys	The Client has a right at an agreed price to conduct its own surveys on the Panel.	0,15 EUR / per completed interview
	SMS registration	SMS (registration/ reward/ invitation)	0,10 EUR / per SMS

General Services	Panel administration basic	The Company handles the technical and practical day to day Panel administration including software and services. This covers Panel management technology, project management technology and reward management technology and taking care of recurring tasks and administration.	0 EUR / month if open to external buyers 500 EUR / month if closed to external buyers
	Panel support basic	The Company agrees to provide support and training to the Client's users (employees, etc.) of the Panel and support to the Panellists regarding any queries concerning their membership in the Panel. This covers any reasonable questions and is to be provided under normal business hours and with reasonable response times.	0 EUR
	Panel support enterprise	The Company handles the technical and practical day to day Panel administration including software and services. This covers Panel management technology, project management technology and reward management technology and taking care of recurring tasks and administration.	TBA
Revenue	Customer revenue from Panel owner revenue share	Amount received by the Client for the participation of Panellists in surveys or other market research activities from other companies buying access if an open Panel.	70 %
	Customer revenue from Behavix data	Amount received by the Client for the participation of Panellists in Behavix data tracking when data is sold to external buyers	25%
Incentives options	Syno Rewards	The Client selects that incentives would be processed by Rewards.	Included
	Custom SynoRewards	The Client selects that incentives would be processed by customized Rewards. Client will provide and upload reward vouchers in Rewards for distribution.	3% from redeemed value
	Other	The Client selects other option how to process incentives than handled via Syno.	Included

7. API Terms: Access to and use of the Panel API is subject to these Terms, Annex 2, and the Agreement. The Company may introduce additional technical requirements, rate limits, and usage restrictions as reasonably necessary to protect its systems.

8. Respondent Status: Respondent statuses shall be determined based on the Company's systems and reporting and shall be subject to the acceptance and reconciliation procedure set out in the Agreement.

9. In case the Client selected "Customer revenue" service in the list, once in 30 (thirty) days the Client shall issue and deliver by e-mail (which the Company indicated in this Agreement) an invoice (with calculated amount of the participation of Panellists in surveys and other market research activities), to the Company and the Company ensures that

payment shall be made by the bank transfer within 30 (thirty) calendar days from the date of such invoice. In case of late payment by the Company under this clause the Client shall have the right to claim the delay penalty in EUR at a rate of 0.02 (zero and two hundredths) % from the outstanding amount for each day of delay from the first day of delay until the day on which the Company performs payment in full, except where the delay in payments was caused by the Client. If the Client panels use SynoRewards, Company shall invoice the Client for redeemed rewards. Invoices for the redeemed rewards shall be presented to the Client every month unless differently agreed by the Parties. Information regarding the redeemed amounts shall be visible in the platform.

10. The Company may update the pricing by informing the Client at least 30 days in advance. In case the Client does not agree on the pricing update they may terminate the Agreement or provision of Services specified in this Annex 2 by a written notice to or by unsubscribing from Syno Cloud services in the customers Syno Cloud Clients account, termination date being the date when the pricing update comes into effect.

11. The Parties agree that they will keep and comply with requirements which are set in the “Terms and Conditions for Panellists and Respondents” (including any and all future additions, changes, updates, etc.) on https://www.synoint.com/terms-and-conditions-for-panellists-and-respondents-would/ and the “Terms and conditions for clients” (including any and all future additions, changes, updates, etc.) on https://www.synoint.com/terms-and-conditions-for-clients/.

12. The Client confirms that he has read, is familiar and obliges to comply with the terms indicated in clause 10 of this Annex and these terms will be reviewed regularly.

Audit trail

Details

FILE NAME	Opinionz SAS-SynoInt Syno Cloud Agreement 20260421.docx - 8/25/26, 12:07 PM
STATUS	Signed
STATUS TIMESTAMP	2026/08/25 18:29:15 UTC

Activity

SENT	jsk@synoint.com **sent** a signature request to: • Benjamin Cornu (benjamincornufrulloni@gmail.com) • Jokke Nurminen (jnu@synoint.com)	2026/08/25 09:08:27 UTC
SIGNED	**Signed** by Jokke Nurminen (jnu@synoint.com)	2026/08/25 18:29:15 UTC
SIGNED	**Signed** by Benjamin Cornu (benjamincornufrulloni@gmail.com)	2026/08/25 09:16:47 UTC
COMPLETED	This document has been signed by all signers and is **complete**	2026/08/25 18:29:15 UTC

The email address indicated above for each signer may be associated with a Google account, and may either be the primary email address or secondary email address associated with that account.



RESEARCH FOR GOOD

INSERTION ORDER

This Insertion Order, dated [Apr 14 2026], is incorporated into and a part of the Research for Good Terms and Conditions for Suppliers ("Supplier T&C's"), found at www.saysorewards.com/research-for-good-terms-and-conditions-for-suppliers, and is between:

Research For Good Inc with offices at 1037 NE 65th St #80212, Seattle, WA 98115 U.S.A. ("RFG," "Company" or "our"), and: Opinionz SAS _____, with an address at 3 Cité Rougemont, 75009, Paris, FRANCE ("Supplier," "you" or "your").

You acknowledge and agree that you have read the Supplier T&C's in their entirety, including without limitation payment terms in Section 4, your representations and warranties regarding your data in Section 5, and your license to RFG in Section 8. By signing below, you indicate your complete acceptance of the Supplier T&C's. Any capitalized terms not otherwise defined in this Insertion Order shall have the meaning ascribed to them in the Supplier T&C's.

Without limiting any terms in the Supplier T&C's, you also agree to the following terms:

1. Fees and Payments.
    a. Company shall set a price on a cost per completed interview basis for a Statement of Work, which may be posted to Supplier through the connection. Supplier's delivery of Services to a Statement of Work constitutes acceptance of the current price posted by Company. A price may be adjusted during the course of a Statement of Work. Company sets or adjusts prices at its sole discretion.
    b. Payments shall be made by Company to Supplier by ACH or wire, following submission of an invoice and an W9, W8BEN-E and/or any other information reasonably required by Company to be completed by Supplier, on Net 60 terms. Notwithstanding this, wire (not ACH) payments will be held until the total outstanding balance owed to Supplier meets or exceeds one thousand dollars ($1,000). If a wire (not ACH) payment is requested to be executed for an amount less than one thousand dollars ($1,000) a twenty-five dollar ($25) bank wire fee will be deducted.
    c. All amounts due shall be paid in United States currency.
    d. Supplier must send their invoice to finance@researchforgood.com. Invoices not sent to this address will be disregarded without penalty.

2. Quality. Supplier must have quality controls in place sufficient to ensure that Deliverables are acceptable. Company will not pay for, and will not be held liable for, unacceptable Deliverables. Supplier is liable to provide refund or replacement at no additional charge for unacceptable Deliverables for up to one hundred and twenty (120) days after delivery, for purposes of which the terms of this Schedule will remain in effect if otherwise terminated. Issues and failures rendering Deliverables unacceptable include but are not limited to:
    a. Duplicate respondents;
    b. Fraudulence among respondents or completed surveys, including but not limited to IP duplications, bad domains, automated completions, or evidence of hacking;

c. Straightlined surveys; and
d. As otherwise reasonably determined.

3. Term and Termination. This Insertion Order shall be effective as of the date above, with a term of one (1) year. The term shall automatically renew each year for a further one (1) year term unless a party gives written notice with a minimum thirty (30) days notice, or otherwise as mutually agreed in writing. Either Party may terminate this Insertion Order for convenience, with thirty (30) days' notice to the other Party. Termination shall result in the elimination of access by Supplier to Company's platform and shall render Supplier ineligible to perform work for RFG. Any and all other obligations of both Parties after termination are unaffected.

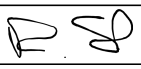
4. Data Protection. For purposes of Applicable Laws and Codes, Supplier warrants that one of the following two options, marked, applies:

   [X] that Supplier will or may provide Services under this Agreement for which Data Protection Laws apply (including but not limited to sharing of names, addresses, emails, IP addresses, location data, device identifiers, cookie IDs, or other identifiers), and will do so in accordance with the terms of the Data Privacy Addendum.
   [ ] that Supplier will not provide Services under this Agreement for which Data Protection Laws may apply (including but not limited to sharing of names, addresses, emails, IP addresses, location data, device identifiers, cookie IDs, or other identifiers); shall not cause Company to be in violation of Data Protection Laws; and indemnifies without limit and holds harmless Company with respect to any fines, penalties, or other resulting actions in connection with Services provided under this Agreement.

5. GDPR. If the GDPR applies to Supplier or to Supplier's products or services, the enclosed Annex 1 of the Standard Contractual Clauses shall apply.

6. Updates to Supplier T&C's. Company may periodically adjust the Supplier T&C's in future with notice in writing to Supplier. Acceptance of these and such future changes to the T&C's will be inferred, unless communicated otherwise by Supplier, within three (3) business days.

Signature below indicates each Party's agreement on the terms of this Insertion Order.

Research For Good, Inc.	
By:	
Printed:	Richard Silva
Title:	President
Date:	November 15, 2024

Opinionz SAS	
By:	Benjamin Cornu Rota
Printed:	Benjamin Cornu Rota
Title:	President
Date:	Apr 14 2026

ANNEX 1

DETAILS OF PROCESSING OF COMPANY PERSONAL DATA

This Annex 1 includes certain details of the processing of personal data as required by GDPR Article 28(3).

Subject Matter and Duration of the Processing of Personal Data

- market research
- all individuals sent to RFG's platform may be subject to tracking each time they interact with said platform

The Nature and Purpose of the Processing of Personal Data

- data points which permit the ongoing identification, profiling, and in-platform tracking of individuals for survey matching purposes

The Types of Personal Data to be Processed

- IP address and device information
- upon opt-in, information which may include but not be limited to name, address, and similar personal details

The Categories of Data Subject to Whom the Personal Data Relates

- no special categories

The Obligations and Rights of Company and Company Affiliates

The obligations and rights of Company and Company affiliates are set out in the Agreement and this Insertion Order.

xodo sign by apryse

Audit Trail

Document Details

Title	SaySo Rewards - Hiving - NET60
File Name	N60 IO.docx
Document ID	004f2c44a73340a39598e0db635b505e
Fingerprint	c7788863287d4d3b27510853614e3db7
Status	Completed

Document History

Document Created	Document Created by Kyle Wilson (kyle@researchforgood.com) Fingerprint: 83d6a69426de8ee9739e5ac102cb2cc0	Apr 13 2026 11:46AM UTC
Document Sent	Document Sent to Alain Cornu (alain.cornu@hiving.fr)	Apr 13 2026 11:46AM UTC
Document Viewed	Document Viewed by Alain Cornu (alain.cornu@hiving.fr) IP: 188.149.239.245	Apr 13 2026 04:55PM UTC
Document Viewed	Document Viewed by Alain Cornu (alain.cornu@hiving.fr) IP: 188.149.239.245	Apr 14 2026 07:46AM UTC
Document Viewed	Document Viewed by Alain Cornu (alain.cornu@hiving.fr) IP: 188.149.239.245	Apr 14 2026 08:38AM UTC
Document Viewed	Document Viewed by Alain Cornu (alain.cornu@hiving.fr) IP: 188.149.239.245	Apr 14 2026 08:40AM UTC
Document Signed	Document Signed by Alain Cornu (alain.cornu@hiving.fr) IP: 188.149.239.245 	Apr 14 2026 08:49AM UTC
Document Sent	Document Sent to Richard Silva (rich@researchforgood.com)	Apr 14 2026 08:49AM UTC
Document Viewed	Document Viewed by Richard Silva (rich@researchforgood.com) IP: 174.49.169.3	Apr 14 2026 11:15AM UTC

Document Signed	Document Signed by Richard Silva (rich@researchforgood.com) IP: 174.49.169.3 	Apr 14 2026 11:15AM UTC
Document Completed	This document has been completed. Fingerprint: c7788863287d4d3b27510853614e3db7	Apr 14 2026 11:15AM UTC

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PURESPECTRUM

Docusign Envelope ID: 2369CB5A-F2DD-8781-81E6-BA2A72653A69

PURESPECTRUM MASTER SUPPLIER AGREEMENT

MSA ID:	

This PureSpectrum Master Supplier Agreement ("**Agreement**") is entered into between the following entities as of the effective date identified below ("**Effective Date**"). Each party will notify the other in writing if any of the information in the following tables changes.

PARTIES

"Supplier"

Entity name: Opinionz SAS
Address: 3 Cité Rougemont 75009 Paris, FRANCE

Details of the business contact for this document:

Contact name: Benjamin Cornu Rota
Contact title: President
Contact email: opinionz.marketplace@gmail.com
Contact phone: +33 6 71 03 98 84

If notices should be provided to someone or someplace other than above, complete the following section:

Notices to:

"PureSpectrum"

Entity name: **PureSpectrum**, a Delaware limited liability company
Address: 31416 Agoura Rd. #210, Westlake Village, CA 91361
Contact name: Mark Menig
Contact email: Mark@PureSpectrum.com
Notices to: By mail to the address above - Attn: To the PureSpectrum contact email above

Effective Date:	

If no Effective Date is provided in the box directly above, the Effective Date is the date on which this Agreement has been duly executed by all parties.

Expiry Date:	**12 months after the Effective Date.**

Renewal Period:	**12 months.**

If no Renewal Period is specified in the box directly above, this Agreement does not automatically renew.

General Terms:	The "General Supplier Terms" posted at the following url are agreed to and incorporated herein: https://purespectrum.com/general-supplier-terms/

Addendum:	The "Supplier Addendum" posted at the following url are agreed to and incorporated herein: https://purespectrum.com/supplier-addendum/

SIGNATURES

By signing below, the parties agree to be bound by the terms of this Agreement as of the Effective Date.

PURESPECTRUM		**SUPPLIER**	
Signed:		Signed:	Signed by: Benjamin Cornu Rota E05024D5EAE543C...
Print name:		Print name:	Benjamin Cornu Rota
Title:		Title:	President
Date signed:		Date signed:	7/3/2026

Docusign Envelope ID: 2369CB5A-F2DD-8781-81E6-BA2A72653A69

ECONOMIC TERMS ADDENDUM

(for PureSpectrum Master Supplier Agreement)

This Economic Terms Addendum is incorporated by reference into the PureSpectrum Master Supplier Agreement ("**Agreement**") identified below. This Economic Terms Addendum is effective as of the "**Economic Terms Addendum Effective Date**" specified below (or if no date is specified, the Economic Terms Addendum is effective on the date it is executed by all parties).

Details

PureSpectrum MSA ID no.:	
Supplier:	Opinionz SAS

Economic Terms Addendum no.:	001
Economic Terms Addendum Effective Date:	
Project Name:	PureSpectrum Supplier License

Supplier billing contact name:	Benjamin Cornu
Supplier billing email:	benjamin.cornu.frulloni@gmail.com
Supplier billing address:	3 Cité Rougemont 75009 Paris, FRANCE
Supplier billing fax no.:	
Supplier billing phone no.:	+33 6 71 03 98 84

Economic Terms Addendum prepared by:	Mark Menig
Replaces Economic Terms Addendum no.:*	N/A

* If this Economic Terms Addendum replaces a previous Economic Terms Addendum, such previous Economic Terms Addendum shall be superseded and replaced by this Economic Terms Addendum as of this Economic Terms Addendum's Effective Date.

Economic Terms	1. The CPI indicated in the API call that supplier makes to PureSpectrum is what supplier will be paid if that transaction results in a complete for API Integrations, subject to reconciliation. 2. The CPI(s) indicated in the Fusion entry link(s) is the minimum amount a supplier will be paid if that transaction results in a complete for Fusion Integrations, subject to reconciliation. 3. Micro-Surveys will be compensated at $0.02 per completed Micro-Survey.

* * * * *

Billing Information

Direct all correspondence relating to invoicing and billing under this Economic Terms Addendum to this address:

PureSpectrum
Attn: Accounts Payable (PureSpectrum)
Email: ap@PureSpectrum.com

* * * * *

Docusign Envelope ID: 2369CB5A-F2DD-8781-81E6-BA2A72653A69

ECONOMIC TERMS ADDENDUM SIGNATURES

By signing below, the parties agree to be bound by the terms of this Economic Terms Addendum and the Agreement.

	PURESPECTRUM		SUPPLIER
Signed:		Signed:	Benjamin Cornu Rota E05024D5EAE543C...
Print name:		Print name:	Benjamin Cornu Rota
Title:		Title:	President
Date signed:		Date signed:	7/3/2026

[End of Economic Terms Addendum]